

Terms and conditions

 theguardian.com/open-platform/terms-and-conditions

Guardian staff reporter

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This article is more than **11 years old**

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TERMS OF USE – OPEN PLATFORM BY THE GUARDIAN

1. Welcome to the Guardian Open Platform

(a) Guardian News & Media Limited (“**we**” or “**us**”) welcomes you to the Guardian Open Platform (“**OP**”), our open services through which you may access our selection of Guardian, Observer and third party content and data (“**OP Content**”). The OP encompasses a number of APIs, including our Content API, that require you to register before first use. Set out below are our terms and conditions for use of the OP and OP Content (the “OP Terms”). The OP Terms apply whenever you access the OP Content, on whatever device and by any means.

(b) By applying to register for the OP you accept the OP Terms, as may be updated from time to time, and have entered into an agreement with us on such terms.

(c) Registration is personal to you. An API key will be provided for each of Your Websites (as defined in 3(a) below), and the restrictions in these OP Terms shall apply separately to each of Your Websites. API keys are non-transferable.

2. Content API

(a) Our Content API is available in three distinct packages: (1) Developer; (2) Rights Managed and (3) Full Access. You are required to register for an API key prior to using any of the three packages.

(b) The OP Content available through the Developer service consists of full text content from our publications, together with thumbnail images and embedded advertising (if any). These OP Terms will apply in their entirety to your use of the Developer service.

(c) The Rights Managed and Full Access services allow you to access full text content without embedded advertising (if any). Rights Managed and Full Access packages are only available by prior arrangement with us – please email us at licensing@theguardian.com to find out more.

3. Getting Started

(a) You will:

(i) Apply for a separate API key for each website through which you wish to access OP and on which you will publish OP Content (“**Your Website(s)**”).

(ii) Provide complete and accurate information at registration.

(iii) Control, and retain control of, Your Website(s).

(b) You will not:

(i) Attempt to register with OP if you have, or Your Website has, previously been refused access or had access rights cancelled by us.

(ii) Create, or facilitate the creation of, additional registration accounts or other technology for the purpose of accessing, or facilitating third party access to, the OP or OP Content without our permission.

(iii) Share your API key with any third party.

(c) Your Website will not:

(i) contain material that is illegal or discriminatory;

(ii) promote or incite violence or an illegal activity; and

(iii) be capable, in our sole discretion, of interpretation as racist, sexist or homophobic or promoting such views.

4. Access to OP and OP Content

(a) You may access the OP and request OP Content only using the API key registered to Your Website.

(b) You may make up to 500 requests for OP Content per API key per day (if you need to increase this quota please contact us at licensing@theguardian.com). This allowance will expire at the close of each day – any unused requests may not be carried over or used in respect of any other of Your Websites.

(c) For the purposes of 4(b) a “request” means a single http request from Your Website to the OP.

(d) The OP Content includes analytics code that allows us to track the location and popularity of the OP Content (including the embedded advertising, if any). This provides us with information about how the OP Content is being used, and allows us to measure interest in certain topics. While the data collected allows us to link this information with you and Your Website(s), we will not collect any personal data relating to your end users and we will not publish or disclose to any third party data that identifies you or Your Website(s).

5. Lifecycle of OP Content

You must either replace (by re-requesting) or delete all OP Content you hold (whether or not published on Your Website) at least every 24 hours. For legal reasons, you must not keep any OP Content for longer than 24 hours.

6. Your Non-Transferable Licence to Use OP Content

(a) Subject to our acceptance of your registration application, and your compliance with these OP Terms (including but not limited to your obligation under 8(a)), you are hereby granted a non-transferable limited licence to:

(i) Access, copy, publish, distribute and display the OP Content in electronic form on Your Website(s).

(ii) Make OP Content available to Your Website’s end users for their personal use only.

(iii) Reproduce our trade marks, logos and branding solely in the form and position provided in the OP Content, and as set out in 6(b) below.

(b) You will:

(i) Retain the full headline, byline and copyright notice from the original OP Content supplied.

(ii) Retain the original watermark embedded in the OP Content.

(iii) Retain any disclaimer footnote, correction or other notice that is linked to the OP Content.

(iv) Include a link to the original article published on www.theguardian.com in all OP Content published on Your Website.

(v) Retain all links to external websites contained within the OP Content.

(vi) Include a “Powered by The Guardian” logo (or such other Guardian logo as we may require from time to time) on the same webpage as any republished OP Content, or any tool or function that is based on OP Content. Such logo must be a reproduction of the “Powered By” file found at <http://www.theguardian.com/open-platform/logos>, and comply with any special terms set out by us. The “Powered by The Guardian” logo must not be used in conjunction with any content other than the OP Content.

(c) You will not:

(i) Edit, adapt, translate or otherwise alter the OP Content.

(ii) Distort the meaning or message of the OP Content by association, implication or juxtaposition.

(iii) Use OP Content in a manner that could amount to derogatory treatment of its author.

(iv) Present OP Content in a way that seeks to replicate, or pass off Your Website as a resource belonging to or endorsed by us.

(v) Use OP Content in any printed format.

(vi) Use headlines from the OP Content to create links to any content other than the full text of the underlying article in its original format (subject to your obligation under 5).

(d) This licence is personal to you and Your Website(s). You may not use the OP Content in conjunction with any website to which an API key has not been registered.

(e) This licence extends to OP Content only – it does not grant you any rights in respect of material appearing on the Guardian Digital Network or in any of our print publications (including but not limited to The Guardian or The Observer). For the purposes of these OP Terms, “Guardian Digital Network” means our digital network accessed via browsers and/or apps or any other means on any device or equipment including but not limited to desktop computers, PDAs, mobile phones and tablet devices and any other connected devices, and incorporating www.theguardian.com or any affiliate or successor websites, digital/IPTV television, RSS feeds, our social media presences, and any other website, app, digital product, network or channel bearing our trademarks or brands.

(f) Use of OP and OP Content is at your own risk.

(g) You will not:

(i) use, copy, scrape, reproduce, alter, modify, collect, mine and/or extract the Content API, OP Content or Guardian Digital Network:

(A) for any machine learning, machine learning language models and/or artificial intelligence-related purposes (including the training or development of such technologies);

(B) for any text and data aggregation, analysis or mining purposes (including to generate any patterns, trends or correlations); or

(C) with any machine learning and/or artificial intelligence technologies to generate any data or content or to synthesise or combine with any other data or content.

OR

(ii) use, or facilitate, authorise or permit the use of, any:

(A) “robot”, “bot”, “spider”, “crawler” or “scraper”; or

(B) other automated device, program, technique, tool, process, algorithm or method (whether for data gathering, mining, collection, reading, scraping, extraction or other purposes), in each case, with the Content API, OP Content or Guardian Digital Network.

OR

(iii) use any service, software, device, tool, method, program, technique, algorithm or process to circumvent any restriction, condition, protection or technological measure that controls access to the Content API, OP Content or Guardian Digital Network in any way, including bypassing or circumventing any access controls or use limits of the Content API, OP Content or Guardian Digital Network, including by way of example robots.txt internet protocols or similar or successor protocols.

(iv) This clause (g) should be treated as an express reservation by GNM of all rights in the Content API, OP Content or Guardian Digital Network, including for the purposes of Article 4(3) of Directive (EU) 2019/790 on copyright and related rights in the Digital Single Market and amending Directives 96/9/EC and 2001/29/EC) and similar reserved rights in other jurisdictions, in each case, to the maximum extent permitted by applicable laws.

7. Your End Users

(a) You may make OP Content available to end users of Your Website strictly for their personal and non-commercial use only (as more particularly described in the theguardian.com Terms of Service, currently located at

<http://www.theguardian.com/help/terms-of-service>.

(b) You may not make or give any representations, warranties or other promises in respect of the OP Content other than as set out in the theguardian.com Terms of Service, currently located at <http://www.theguardian.com/help/terms-of-service>.

(c) You are solely responsible for ensuring that the OP Content you select for publication is appropriate and lawful, taking into account the location and likely characteristics (including but not limited to age) of your target audience.

(d) You are solely responsible for imposing and enforcing appropriate terms (which at least meet the requirements of 7(a) and 7(b) above) in respect of OP Content on end users of Your Website.

8. Advertising and Commercial Use

(a) As a condition of your licence to publish OP Content, you must display on Your Website any advertisement that we supply to you with the OP Content (if any). The position, form and size of any such advertisement must be retained as embedded in the OP Content.

(b) Provided that you continue to comply with Clause 8(a), you may attach third party advertising to Your Website without accounting to us for any share in the revenue generated by such advertising, provided that:

(i) You do not sell advertising space that directly attaches to, or using the goodwill associated with, OP Content.

(ii) You do not associate OP Content, directly or indirectly, with advertisements or advertisers that could be regarded by us as illegal or discriminatory.

(iii) You comply with any additional restrictions that we may introduce from time to time as part of the OP Terms.

(c) You may not syndicate or otherwise charge a fee for access to OP Content.

(d) We do not accept any responsibility for ensuring that the advertisements embedded in the OP Content (if any) will be appropriate for your audience and/or lawful when published on Your Website.

9. Your Compliance

(a) You will:

(i) Follow the instructions contained in any legal or other notice that we send you in respect of the OP Content (which may require you to cease using certain OP Content). Unless a different period is specified on the face of any notice, you must comply with the instructions within 24 hours of our sending such notice.

- (ii) Keep confidential the existence and content of any legal notice sent to you by us (in accordance with the terms stated on the face of such notice).
- (iii) Ensure that your use of OP Content complies with all relevant local laws and take independent legal advice where appropriate.
- (iv) Comply with relevant court reporting restrictions and, where publishing OP Content, any local laws applicable to publishers (including but not limited to the law on contempt in the UK).
- (v) Comply with all local advertising codes and regulations.
- (b) You must inform us in writing as soon as possible if you receive any complaint or claim by a third party in relation to the OP Content.
- (c) You will not use OP Content for any unlawful purpose or in any way that infringes or is likely to infringe the rights (including but not limited to intellectual property rights) of any third party.

10. Termination

- (a) We may cancel or suspend the OP, or one or all of the API keys issued to you for Your Website(s), at any time for any period and without notice.
- (b) Your permission to access OP and to use OP Content shall terminate automatically on the occurrence of any of the following:
 - (i) You commit a breach of the OP Terms.
 - (ii) We cancel or suspend one or all of the API keys issued to you for Your Website(s).
 - (iii) We provide written notice to you of such termination.
- (c) Our right to cancel your API key is in addition to any other rights and remedies that we may have under the OP Terms or as provided by law.
- (d) You may terminate the agreement between us by ceasing to access the OP.
- (e) On suspension or termination of your permission to access OP for any reason (including those in 10(d) above), your OP Content licence will automatically terminate, and you will immediately cease publication, or other use, of all OP Content.
- (f) On termination of your permission to access OP for any reason, you will remove immediately all OP Content from Your Website(s) and delete any remaining OP Content in your possession.

11. Our Liability

- (a) Your use of, and any reliance on, the OP and OP Content is at your own risk.
- (b) We hereby exclude liability for indirect, special or consequential damages, even if you have previously advised us of the possibility of such damages. In addition, we will not be liable for any loss of revenue, profits, opportunity or data arising in connection with your access to OP or use of OP Content.
- (c) We hereby exclude liability for the consequences of any inaccuracy, interruptions or errors in the OP Content or OP. We are not obliged to make any particular OP Content available to you via OP or by any other means.
- (d) We will not be liable in any circumstances to your end users of OP Content.

12. Disclaimer

- (a) We are under no obligation to approve your application for registration and may refuse access to OP to you or Your Website(s).
- (b) We are under no obligation to make any particular content available as OP Content. Access to and availability of the OP or OP Content is not guaranteed, nor can we ensure that it will be uninterrupted or error free.
- (c) We make no representation that the OP or OP Content will be available, complete, accurate, uninterrupted, error free or free from viruses or anything else of similar destructive qualities.
- (d) The OP Content is intended for general information and you are solely responsible for determining whether the OP Content is suitable for your purposes. We make no representation that the OP Content will be legally compliant or otherwise appropriate for your intended use.
- (e) All implied warranties, conditions or other terms are excluded to the fullest extent permitted by law.
- (f) Content may contain links to websites provided by independent third parties. We are not responsible for the availability or content of such sites and shall not be responsible for any transaction concerning goods or services available from those sites.

13. Rights

Nothing in the OP Terms shall operate to transfer to you or create for your benefit any interest (including but not limited to goodwill) in the OP, OP Content, our branding or other logos and trade marks included in the OP, which shall remain at all times the property of Guardian News & Media Limited, its licensors or third parties.

14. Amendments to the OP Terms

(a) These OP Terms may be varied from time to time (including to take account of any additional or special terms required in respect of any third party content included in the OP Content). Please ensure that you review this page at <http://www.theguardian.com/open-platform/terms-and-conditions> regularly as you will be deemed to have accepted a variation if you continue to use OP after it has been posted.

(b) Details of variations will be posted in 19 below.

(c) Any supplemental terms notified to you directly (including but not limited to as part of the supply of OP Content to you) will, if you continue to use the applicable OP Content or function, form part of these OP Terms for the purposes of our agreement with you.

15. General

(a) Change of Your details If your details change following registration you must inform us immediately by emailing liscencing@theguardian.com

(b) Your Data We will collect personal data from you during the registration process, and will use such data for the purposes of performing this agreement. Specifically, we will use your data to provide you with access to the OP, to provide notices to you under the agreement and for general administration of your authorisation to access OP and the OP Content. We will pass your personal data to our service providers and partners to the extent necessary for these purposes.

(c) Third Party Operators Parts of the OP, including the means of accessing the OP Content, will be powered by, hosted or otherwise managed by third parties. Such third parties may impose their terms of use on you in respect of the OP area they control. In the event of a conflict between the OP Terms and those of any third party, these terms shall prevail to the extent that such conflict concerns OP Content (as opposed to access to it).

(d) Fees We reserve the right to introduce charges for accessing the OP and/or OP Content in the future. Any such introduction will be notified to you in advance.

(e) Publicity You agree that we may use your name, logo and URL on OP, associated publicity for and reporting literature regarding OP.

(f) Assignment Except as expressly set out in these terms, you are not permitted to assign, sub-licence, transfer or dispose of the rights licensed under the agreement.

(g) Waiver The non-exercise of, or delay in exercise, by us of any power, right or remedy provided by this agreement or law shall not operate as a waiver of that power, right or remedy. Similarly, any single or partial exercise of by us of a power, right or remedy provided by this agreement or law shall not preclude any other or further exercise of such. A power, right or remedy will only be waived by us if notified to you in writing.

16. Our Values and Brands

You will not use the OP Content or any aspect of our relationship with you in a manner that could, in our reasonable opinion, cause harm to our goodwill, conflict with our values or which could cause our brand to be brought into disrepute.

17. Governing Law and Jurisdiction

The agreement between us is governed by English law and the parties agree to submit to the exclusive jurisdiction of the English courts.

18. Contact Us:

Please contact us at licensing@theguardian.com if you would like to discuss any aspect of these licence terms, or if you wish to do any of the following:

- (i) Edit or adapt OP Content
- (ii) Receive OP Content in another language
- (iii) Make your own translations of OP Content
- (iv) Increase your quota limit on API key requests
- (v) Syndicate or resell OP Content
- (vi) Base Your Website entirely around OP Content or a single OP contributor If you need to tell us about a complaint or claim you have received in relation to OP Content (in accordance with 9(b)), please email us at licensing@theguardian.com.

We'd also love to hear from you about any new products or applications that you have created using OP. Tell us all about it by email to licensing@theguardian.com and we might be in touch.

Please remember to direct your end users to the OP Site to set up their own access to and licence to use OP Content.

19. Variations to the OP Terms:

First published: 10 March 2009

Updated: 20 May 2010 as follows:

- “Open Platform by the Guardian” references changed throughout to “Guardian Open Platform” to reflect updated branding.
- Clause 1(a) extended to refer to additional API offerings through OP

- *Clause 2 (“Beta Trial”) deleted in its entirety and replaced with new structure to reflect the OP offering in Phase 2 (post-beta trial).*
- *Clause 6(b) updated to include a new obligation on developers to carry a “powered by the Guardian” logo alongside OP Content.*
- *Clause 7(c) new sub-clause added*
- *Clause 8(a) amended to require developers to retain advertising that is embedded within OP Content.*
- *Clause 8(b) amended to add a restriction on selling advertising space that attaches to the OP Content to third parties.*
- *Clause 8(d) new sub-clause added.*
- *Clause 15(c) amended to clarify that the means of accessing OP Content will be operated by a third party.*

Updated: 4 February 2015 as follows:

- *References to “openplatform@theguardian.com” changed throughout to licensing@theguardian.com to reflect updated email addresses.*
- *References to “theguardian.com” changed throughout to “theguardian.com” to reflect updated website address.*
- *Clause 1(b) updated to reflect changes to the online registration page.*
- *Clause 2 amended to include updated API package types.*
- *Clause 6(e) amended to include details of the Guardian Digital Network.*

Updated: 25 January 2024 as follows:

Inserted new clause 6(g) concerning restrictions related to artificial intelligence, training uses, text & data mining, scraping and bot activity, and EU opt-outs.